This form must be used to document examinations or evaluations conducted on or after January 1, 2027. The court may accept certificates completed on this form or on prior versions (i.e., revised before 10/2026) of forms CC-GN-019, CC-GN-020, CC-GN-021, and CC-GN-050 based on examinations or evaluations conducted on or before December 31, 2026. See Maryland Rules 10-202(a)(1) and 10-301(d)(1).

CIRCUIT COURT FOR _____ **, MARYLAND**

Located at _____ Telephone _____

Case No. _____

In the Matter of

_____ _____

CERTIFICATE – GUARDIANSHIP CAPACITY ASSESSMENT
(Md. Rule 10-202)

NOTE: This certificate will be used in a legal proceeding to determine whether an individual needs a guardian of person, a guardian of the property, or both. It can also be used to help identify less restrictive alternatives (options) that can help limit or modify a guardianship. **Only a licensed: physician, psychologist, physician assistant, clinical social worker – clinical (LCSW-C), or nurse practitioner may complete this certificate.**

TO THE CLINICIAN COMPLETING THIS DOCUMENT:

Guardianship is a court process in which a court determines that an individual needs another person – a guardian – to make some or all decisions on the individual's behalf. **Guardians of the person** are appointed to make personal decisions on behalf of an individual under guardianship, including decisions about medical care, personal needs, housing, educational needs, and access to family and friends. **Guardians of the property** are appointed to make financial decisions, manage property, or apply for benefits on behalf of the individual under guardianship.

Guardianship restricts the fundamental rights and liberties of the individual and is intended to be a last resort. When a guardian is appointed, the individual will no longer be able to make their own decisions, unless the court limits the guardian's authority.

Courts will consider **alternatives to guardianship**, which are formal or informal options that, alone or together, allow an individual to have their needs met without a guardian. Alternatives to guardianship can also help the court limit a guardian's authority, allowing the individual to retain the right to make some decisions.

Your assessment will help the court determine the individual's functional capacity to make and communicate responsible decisions about his/her/their personal or financial affairs. The information you provide can also help identify alternatives to guardianship or limit the authority of any appointed guardian. For more information about guardianship and its alternatives, visit www.mdcourts.gov/idealguide.

This certificate must be based on your personal examination or evaluation of the individual. You must complete and sign it yourself. Complete the entire form. **If your assessment does not allow you to provide an opinion or to complete a particular section, explain or write "Not applicable" or "N/A". Attach additional documents if needed.** The court may reject your certificate if a section is left blank.

You may be asked to testify about your assessment at a hearing.

INDIVIDUAL EVALUATED/EXAMINED

Full Name: _____

Date of Birth: _____ Gender: _____

Language: ☐ English Other: _____

CLINICIAN INFORMATION

Full Name: _____

Employer: _____

Street Address: _____

City, State, Zip: _____

Telephone: _____ E-mail: _____

Profession: ☐ Licensed Physician ☐ Licensed Psychologist ☐ Licensed Physician Assistant
☐ Licensed Clinical Social Worker-Clinical ☐ Licensed Nurse Practitioner

Medical/Graduate School: _____ Year: _____

License No: _____ State: _____

Specialty: _____

Knowledge, training, or experience relevant to assessing the individual's functional capacity to make or communicate decisions about personal or financial matters:

History with the individual, including how long you have known the individual:

PART I. INFORMATION ABOUT THE EVALUATION/EXAMINATION

Location(s) ***(Select all that apply)*****:**

☐ **Hospital, medical office, or other facility**

Facility name: _____

Date(s) (mm/dd/yy): _____ Length: _____

☐ **Individual's residence**

Street Address: _____

City, State, Zip: _____

Date(s) (mm/dd/yy): _____ Length: _____

☐ **Other physical location**

(describe)**:** _____

Street Address: _____

City, State, Zip: _____

Date(s) (mm/dd/yy): _____ Length: _____

☐ **Remotely, with audio and visual access to the individual**

Date(s) (mm/dd/yy): _____ Length: _____

Reason for remote assessment:

Persons present during or who assisted with the evaluation/examination:

Full Name	Relationship to the Individual

Assistive devices or services used by the individual during the evaluation/examination:
(e.g., glasses, hearing aids, interpreters, communication devices)

Cognitive, adaptive, or other tests performed:

Test	Date(s)

Collateral sources interviewed:

Full Name	Relationship to the Individual

Records reviewed:

Other sources of information:

PART II. GENERAL PHYSICAL AND MENTAL HEALTH

a. Individual's Physical Health

Overall physical health is: ☐ Excellent ☐ Good ☐ Fair ☐ Poor ☐ I don't know

Overall physical health is likely to:

☐ Improve ☐ Remain stable ☐ Fluctuate ☐ Deteriorate ☐ I don't know

Diagnoses:

b. Individual's Mental Health (cognitive and emotional)

Overall mental health is: ☐ Excellent ☐ Good ☐ Fair ☐ Poor ☐ I don't know

Overall mental health is likely to:

☐ Improve ☐ Remain stable ☐ Fluctuate ☐ Deteriorate ☐ I don't know

Diagnoses:

c. Temporary and/or Reversible Causes

Have temporary and/or reversible causes of mental impairment been considered, assessed, diagnosed, or treated? ☐ Yes ☐ No ☐ I don't know

Comments:

d. Other factors impacting decision-making

Are there physical or emotional factors that affect the individual's decision-making that could improve with time, treatment, or assistive devices (e.g., hearing, vision, or speech impairment; bereavement; recent trauma)? ☐ Yes ☐ No ☐ I don't know

Comments:

e. Medications

Name	Dose	Schedule	Indication

f. Assistive devices/services (e.g., glasses/contacts, visual aids, hearing aids, interpreters, communication devices, cognitive aids, support persons):

List any that are routinely used by the individual:

PART III. FUNCTIONING

a. Level of functioning

Domain	Intact	Mild impairment	Moderate impairment	Severe impairment	Not assessed	Unknown
Orientation	☐	☐	☐	☐	☐	☐
Attention/ Concentration	☐	☐	☐	☐	☐	☐
Sensory/Motor Functioning	☐	☐	☐	☐	☐	☐
Language/ Communication	☐	☐	☐	☐	☐	☐
Memory	☐	☐	☐	☐	☐	☐
Reasoning	☐	☐	☐	☐	☐	☐
Other Executive Functioning	☐	☐	☐	☐	☐	☐
Emotional/ Behavioral Functioning	☐	☐	☐	☐	☐	☐

Explain how any impairments affect functioning:

b. Information Processing

Does the individual have a condition that interferes with the ability to:

	Yes	No	Not assessed	Unknown
receive information?	☐	☐	☐	☐
evaluate information in a decision process?	☐	☐	☐	☐
communicate decisions?	☐	☐	☐	☐

Describe the condition and how it affects the individual's functioning:

PART IV. EVERYDAY ACTIVITIES

a. Activities of Daily Living (ADLs)

Activity	Independent	Able with advice and passive support	Able only with active assistance	Unable, even with assistance	Not assessed
Bathing	☐	☐	☐	☐	☐
Dressing	☐	☐	☐	☐	☐
Eating	☐	☐	☐	☐	☐
Transferring	☐	☐	☐	☐	☐
Toileting	☐	☐	☐	☐	☐

Comments about ADLs:

b. Instrumental Activities of Daily Living (IADLs)

Home and Community Life	Independent	Able with advice and passive support	Able only with active assistance	Unable, even with assistance	Not assessed
Maintain a reasonably safe and clean home or other living environment	☐	☐	☐	☐	☐
Arrange for home maintenance or care	☐	☐	☐	☐	☐
Prepare meals and eat for adequate nutrition	☐	☐	☐	☐	☐
Identify abuse or neglect and protect self from harm	☐	☐	☐	☐	☐
Recognize and avoid common hazards	☐	☐	☐	☐	☐
Access transportation	☐	☐	☐	☐	☐
Initiate and follow a schedule of daily activities	☐	☐	☐	☐	☐
Utilize a communication tool (phone, e-mail, text, etc.)	☐	☐	☐	☐	☐

Comments about home and community life IADLs:

Medical/Mental Health	Independent	Able with advice and passive support	Able only with active assistance	Unable, even with assistance	Not assessed
Understand and appreciate healthcare needs	☐	☐	☐	☐	☐
Initiate and arrange care	☐	☐	☐	☐	☐
Choose and direct caregivers	☐	☐	☐	☐	☐
Admit self to a health care facility	☐	☐	☐	☐	☐
Manage own medication	☐	☐	☐	☐	☐
Contact help if ill or in an emergency	☐	☐	☐	☐	☐

Comments about medical/mental health IADLs:

Financial	Independent	Able with advice and passive support	Able only with active assistance	Unable, even with assistance	Not assessed
Manage small amounts of cash	☐	☐	☐	☐	☐
Pay bills	☐	☐	☐	☐	☐
Manage complex financial tasks (e.g., filing taxes)	☐	☐	☐	☐	☐
Manage property and investments	☐	☐	☐	☐	☐

Describe any known history of the individual being scammed or financially exploited:

Comments about Financial IADLs:

PART V. INTERVENTIONS

Would any of the following interventions be beneficial to the individual?

Intervention	Yes	No	Not assessed	Unknown
Training or education	☐	☐	☐	☐
Home or social services	☐	☐	☐	☐
Assistive devices or accommodations	☐	☐	☐	☐
Medical treatment, operation, or procedure	☐	☐	☐	☐
Mental health treatment	☐	☐	☐	☐
Occupational, physical, or other therapy	☐	☐	☐	☐
Other ***(describe)***:_____				

Explain:

Other information about the individual's decision-making abilities or limitations:

My responses are based on my professional opinion, within a reasonable degree of professional certainty.

I solemnly affirm under the penalties of perjury that the contents of this document are true to the best of my knowledge, information, and belief.

Date	Signature	Attorney Number
Street Address	Printed Name	
City, State, Zip	E-mail	
Telephone Number	Fax	

Reset